

26VECV00778 26VECV00778

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CB%2C08%2F25%2F2026

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Case Number: 26VECV00778 Hearing Date: August 25, 2026 Dept: B

Tentative Ruling

American Integrated Services v. One

Silver Serve, Case no. 26VECV00778

Hearing date August 25, 2026

Defendant

Pasadena Unified School District's Demurrer to the First Amended Complaint

Plaintiff

American Integrated Services, Inc. sues defendants One Silver Serve, LLC, Merchants Bonding Company (Mutual) and Pasadena Unified School District ("Pasadena USD") for breach of contract and related causes of action, alleging failure to pay for fire cleanup services.

Pasadena

demurred to the sixth cause of action for violation of a mandatory duty under Gov. Code §815.6; plaintiff opposed. The court sustained with leave to amend. 4/16/26 Min. Order. Pasadena demurs to the same cause of action in the first amended complaint; plaintiff opposes.

Pasadena

requests judicial notice of: (1) Pasadena USD Board Resolution 2797; (2) Pasadena USD January 30, 2025 Board Minutes and Ratification of Contracts per Resolution 2797; (3) Pasadena USD February 27, 2025 Board Minutes and Ratification of PO List for January 2025; and (4) Pasadena USD Board Policy, BP 3312. Plaintiff objects. Objections A-E OVERRULED. Judicial notice GRANTED pursuant to Evid.

Code §452(h). Warmington Old Town Assoc., L.P. v. Tustin Unified School Dist. (2002) 101 Cal.App.4th 840.

“The

function of a demurrer is to test the sufficiency of the complaint as a matter of law.” Holiday Matinee, Inc. v. Rambus, Inc. (2004) 118 Cal.App.4th 1413, 1420. A complaint “is sufficient if it alleges ultimate rather than evidentiary facts.” Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550, but plaintiff must allege essential facts “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. Doheny Park Terrace Homeowners Ass’n., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.

Plaintiff

sues for violation of mandatory duty under Gov. Code §815.6. “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” Gov. Code §815.6.

Pasadena

USD demurs, arguing the alleged damages arise from a contract between One Silver Serve and Pasadena. See FAC., exh. 1. Pasadena USD asserts the contract was not approved or signed by its Board, so is not enforceable against Pasadena. Id. Pasadena USD argues the FAC’s allegations that Pasadena ratified the contract and was obligated to collect a payment bond, regardless of Board approval, are contrary to law and cannot sustain the cause of action. Id. at paras. 36-44.

Contracts

with Pasadena USD, a public entity governed by statute, must be in writing, approved by the Board and evidenced in Board meeting minutes. See Educ. Code §§17604-17605; Pub. Con. Code §20118.4. Plaintiff attaches the contract between Pasadena and One Silver Serve, incorporating the contract details and rendering it subject to demurrer. Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726. The contract is not signed by Pasadena or the Board. See FAC, exh. 1.

Plaintiff

re-alleges it was a subcontractor of One Silver Serve, and Pasadena's failure to secure a payment bond caused it to suffer damages, in violation of §815.6. FAC, paras. 36-44. Plaintiff argues its claim is supported by allegations that Pasadena ratified the contract, even if no Board approval actually occurred. Id. at 36.

On

1/16/25 Pasadena's Board adopted Resolution No. 2797 (RJN 1-2) stating "any contract executed by the District's Superintendent or designee shall be brought before the Board for subsequent ratification." Id. The FAC alleges the contract between Pasadena and One Silver Serve was never brought before the Board and fails to allege when alleged ratification occurred. Per Resolution 2797, "[i]f a person with delegated authority orders any action specified in paragraph (1), the Board shall initially review the emergency action not later than seven days after the action, or at its next regularly scheduled meeting if that meeting will occur not later than 14 days after the action, and at least at every regularly scheduled meeting thereafter until the action is terminated...." RJN 1. No such review occurred. See RJN 2.

Plaintiff's

new allegations that ratification occurred are insufficient absent allegations of when said ratification occurred and with what alleged Board approval. Absent Board approval, plaintiff essentially alleges existence of an oral contract, which is insufficient to bind a public school district. *Orthopedic Specialists of S. California v. Pub. Employees' Ret. Sys.* (2014) 228 Cal.App.4th 644, 649. Requirements for a written contract cannot be waived or orally modified. *G. Voskanian Constr., Inc. v. Alhambra Unified Sch. Dist.* (2012) 204 Cal.App.4th 981, 990.

The

court previously granted leave to amend. Plaintiff must state at hearing what further allegations could be made to address the ongoing deficiency. If plaintiff cannot state a proposed amendment to cure the identified issues, the court will SUSTAIN without leave to amend.